

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X
ELIZABETH BARTER,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD POLICE OFFICER
DENNIS PENG, Shield No. 20134, NYPD POLICE
OFFICERS JOHN DOES NUMBERS ONE THROUGH
TEN,

Defendants.
----- X

SUMMONS

Index No.:

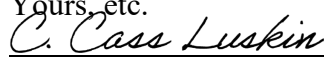
The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
December 28, 2021

Yours, etc.

C. Cass Luskin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER DENNIS PENG, SRG4 - Queens, 137-58 Northern Blvd, Flushing, NY 11354

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VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff ELIZABETH BARTER, by her attorneys, Shulman-Hill, PLLC, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On November 4, 2020, at approximately 8:45 p.m., Plaintiff Elizabeth Barter, while lawfully in the vicinity of the intersection of St. Luke's Street and 7th Avenue, County and State of New York, was subject to an unlawful arrest, detention, assault, battery and excessive use of force by defendant Police Officers. In doing so, defendant Police Officers injured Plaintiff's brain, teeth, body and wrists, causing serious physical injury necessitating hospital treatment. Plaintiff was deprived of her constitutional, common law and statutory rights when the individual defendants unlawfully stopped, detained, assaulted, battered, subjected to excessive force, passed along false accusations to prosecuting attorneys and engaged in the malicious prosecution of Plaintiff, in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Elizabeth Barter is a resident of the state of New York.

3. New York City Police Officer Dennis Peng is and was at all times relevant herein an Officer with the New York City Police Department.

4. New York City Police Officer Dennis Peng is being sued in their individual and official capacity.

5. Currently and at all times relevant herein, New York City Police Officer Dennis Peng was assigned to the SRG-4 – Queens Police Precinct of the NYPD.

6. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. Police Officers John Does #1-10 are being sued in their individual and official capacities.

8. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

9. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

10. Plaintiff in furtherance of her causes of action brought pursuant to New York State law filed a timely Notice of Claim against the City of New York in compliance with the Municipal Law Section 50 and in accordance with New York State law.

11. In accordance with New York State law and General Municipal Law Section 50, Plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on November 23, 2021.

12. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claims.

13. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

14. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

15. On November 4, 2020, at approximately 8:45 p.m., Plaintiff was present in vicinity of the intersection of St. Luke's Street and 7th Avenue, County and State of New York, when the defendant Police Officers unlawfully assaulted, battered, used excessive force and falsely arrested Plaintiff without legal justification.

16. Plaintiff was present as part of a political march, beginning at Washington Square Park.

17. The march was in response to news that Presidential votes in the 2020 election would not be denied, left uncouncted, or otherwise challenged.

18. As the marchers proceeded along Christopher Street and onto Seventh Avenue, they were shadowed by dozens of officers from the Strategic Response Group ("SRG").

19. Some of the defendant officers were among the SRG officers shadowing the marchers.

20. The SRG Officers did not give the marchers any commands, but kettled them onto the roadway using bicycles.

21. After a few blocks, Plaintiff and the other marchers were ordered onto the sidewalk.

22. One of the defendant officers began hitting Plaintiff with his bicycle against the front of Plaintiff's body.

23. Suddenly another Defendant Police Officer approached and grabbed Plaintiff, dragging her off the sidewalk.

24. The Defendant Officer began to punch Plaintiff in the back of the head repeatedly.

25. The Defendant Officer was punching Plaintiff with his hands, but his hands were armored with hard plastic covering.

26. The Defendant Officer then threw Plaintiff to the ground.

27. On the ground, the Defendant Officer flipped Plaintiff over onto her stomach, then shoved her face into the ground while kneeling on Plaintiff.

28. The Defendant Officer was kneeling on Plaintiff's back and neck, and punching her in the sides of her body as she lay on the ground, including her arms, back, and torso area.

29. Other defendant officers were in the immediate vicinity watching as the Defendant Officer assaulted Plaintiff, but they did and said nothing to intervene.

30. The Defendant officer then misapplied zip-ties to Plaintiff's wrists, making them overtight thereby causing injury to Plaintiff's wrist.

31. Plaintiff complained immediately to other defendant officers but was unable to have the zip ties removed and re-applied for 45 minutes.

32. Plaintiff was then transported to One Police Plaza.

33. At One Police Plaza, Plaintiff was fingerprinted, photographed, and placed into a holding cell.

34. Plaintiff remained at One Police Plaza for several hours before being transported to Central Bookings.

35. At Central Bookings, Plaintiff was again fingerprinted, searched and photographed, before sitting for approximately 12 hours before she went before a Judge and was released.

36. While Plaintiff was in custody, the defendant police officers provided the New York County District Attorney's Office with the false, misleading and/or incomplete information that Plaintiff committed a crime.

37. Specifically, the defendant police officers falsely stated to the New York County District Attorney's Office that Plaintiff was engaged in Obstruction of Governmental Administration.

38. Plaintiff did not Obstruct Governmental Administration, or in any way assault or interfere with the defendant Officers and other Officers on the date in question.

39. At around 10PM on November 5th, after approximately 26 hours of false imprisonment, Plaintiff saw a Judge and was released on her own recognizance.

40. After being released at arraignment, Plaintiff went to CityMD due to severe pain in her head, neck, and body from the illegal arrest and battery by defendant Officers.

41. Plaintiff also received injuries to several of her teeth from having her face ground into the pavement, including chipping and shifting of front teeth.

42. Plaintiff also received significant injuries to her brain in the form of concussion symptoms, including headaches, memory loss, foginess or difficulty concentrating, and issues with her eyesight.

43. Plaintiff has emotional injuries stemming from her assault by defendant officers

44. Plaintiff does not have insurance and therefore had to pay out of pocket for all her medical expenses.

45. Plaintiff paid \$3500 to hire private counsel to fight these unlawful charges.

46. Plaintiff had to make approximately ten (10) more appearances for her criminal case, which was dismissed and sealed on November 17, 2021.

47. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

48. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

49. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

50. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably assaulting, battering, and using excessive force against Plaintiff.

51. The unlawful assault, battery, and use of excessive force by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Negligence

52. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

53. Defendants owed a duty of care to Plaintiff.

54. To the extent defendants claim that the injuries to Plaintiff by the defendant police officers was unintentionally caused and that the force used by the defendants against her was unintentional, then the defendants breached that duty of care by injuring her wrists, body, teeth and brain.

55. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

56. All of the foregoing occurred without any fault or provocation by Plaintiff.

57. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

58. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

59. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SECOND CAUSE OF ACTION **Unlawful Stop, Question, and Search**

60. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

61. The illegal approach, pursuit, stop and grab employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

62. The conduct of defendants in approaching, stopping, and grabbing Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

63. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

64. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

65. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION **Violation of Fourth and Fourteenth Amendment Rights:** **Unlawful Seizure and Deprivation of Liberty**

66. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

67. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

68. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

False Imprisonment

69. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

70. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

71. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York and the United States Constitution.

72. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

73. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

74. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Violation of Plaintiff's Fourth And Fourteenth Amendment Rights: Excessive Force

75. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

76. The use of excessive force by defendants by, amongst other things, roughly handcuffing, grabbing and throwing Plaintiff onto the ground, slamming Plaintiff's teeth into the

pavement, and striking her in the back of the head and on her body repeatedly constituted objectively unreasonable physical seizures of Plaintiff in violation of her rights under the Fourth and Fourteenth Amendments to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

77. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SIXTH CAUSE OF ACTION

Assault

78. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

79. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted Plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to the Plaintiff, that such acts caused apprehension of such contact in the Plaintiff.

80. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

81. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

82. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

83. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Battery

84. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

85. Defendants, their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously battered Plaintiff, when they, in a hostile and/or offensive manner grabbed and threw Plaintiff onto the ground, slammed Plaintiff's teeth into the pavement, and struck her in the back of the head and on her body repeatedly, thereby

brutally effecting an unlawful arrest of Plaintiff without her consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused such battery.

86. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

87. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

88. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION **Negligent Infliction of Emotional Distress**

90. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

91. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

92. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

93. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

94. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

95. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

96. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

97. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

98. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

99. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to physical, emotional and psychological injuries.

TENTH CAUSE OF ACTION

Failure to Intervene

100. The Plaintiff repeats, reiterates and realleges each and every allegation contained in the foregoing paragraphs with the same force and effect as if more fully set forth at length herein.

101. The defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

102. Defendants failed to intervene to prevent the unlawful conduct described herein.

103. As a result of the foregoing, Plaintiff's suffered serious, debilitating and permanent injury, her liberty was restricted for an extended period of time, she was put in fear of her safety, her injuries worsened, she did not receive necessary medical treatment, and she was humiliated and subject to other physical constraints.

104. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

105. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

106. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

107. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

ELEVENTH CAUSE OF ACTION

**Violation of Fourth And Fourteenth Amendment Rights:
Denial of Right to Fair Trial/Due Process**

108. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

109. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

110. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

111. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

112. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

113. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of her constitutional rights.

114. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

115. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

116. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

TWELFTH CAUSE OF ACTION

Malicious Prosecution

117. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

118. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

119. Defendants commenced and continued a criminal proceeding against Plaintiff.

120. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

121. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

THIRTEENTH CAUSE OF ACTION
Deliberate Indifference to Medical Needs

122. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

123. Defendants, despite being aware that Plaintiff was suffering from being stuck repeatedly in the head and body, having her face slammed onto the pavement and from loss of circulation and other injuries from overtight handcuffs, thereby requiring additional treatment from medical professionals, delayed Plaintiff's medical treatment and refused to administer and properly procure immediate and adequate medical attention.

124. The delay in medical treatment to Plaintiff's injuries resulted in a month-long hospitalization, increased severity in Plaintiff's nephrological injuries that were suffered by Plaintiff that would have been prevented if Plaintiff received treatment in a timely manner.

125. As a direct and proximate result of such acts, defendants deprived Plaintiff of her rights under the laws of the State of New York.

126. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

127. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

128. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FOURTEENTH CAUSE OF ACTION
Violation of Article I, § 12 of the New York State Constitution

129. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

130. Such conduct breached the protections guaranteed to plaintiff by the New York State Constitution, including but not limited to, Article 1, §§ 1, 6, 8, 9, 11, and 12, and including the following rights:

- i. freedom from unreasonable search and seizure of her person and property;
- ii. freedom from arrest without probable cause;
- iii. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion, or legal justification, and of which wrongful detention plaintiff was aware and did not consent;
- iv. freedom from the lodging of false charges against her by police officers and prosecutors, including on information and belief, by some or all of the individual defendants; and
- v. freedom from deprivation of liberty without due process of law.

131. As a direct and proximate result of defendants' deprivations of Plaintiff's rights, privileges, and immunities guaranteed by the New York State Constitution, Plaintiff suffered physical, economic and emotional injuries, as well as a deprivation of liberty.

132. As a result of the above tortious conduct, Plaintiff was caused to suffer physical, economic, and emotional injuries, as well as a deprivation of liberty.

133. As a result of the above unconstitutional conduct, the City of New York is liable for the conduct of the Individual Defendants and any damages they caused under the doctrine of *respondeat superior*.

JURY DEMAND

126. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Elizabeth Barter demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law, and that the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988 and 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8801 *et seq.*.

Dated: New York, New York
December 28, 2021

By: *C. Cass Luskin*
C. Cass Luskin, Esq.
Shulman-Hill, PLLC
Attorneys for Plaintiff
1 State Street Plaza
15th Floor
New York, New York 10004
(212) 203-1090

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
OFFICER DENNIS PENG, SRG4 - Queens, 137-58 Northern Blvd, Flushing, NY 11354

ATTORNEY'S VERIFICATION

C. CASS LUSKIN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **SHULMAN-HILL PLLC**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
December 28, 2021

C. Cass Luskin

C. CASS LUSKIN